



February 13, 2026

ENGROSSED HOUSE BILL No. 1408

DIGEST OF HB 1408 (Updated February 11, 2026 4:51 pm - DI 152)

Citations Affected: IC 4-3; IC 21-22; IC 22-4.1.

Synopsis: Education matters. Includes the general assembly in the list of state entities to which the management performance hub (MPH) must make available certain government information. Provides that the MPH's annual data product: (1) must include certain sources of information; and (2) must be made available to the general assembly. Amends the definition of workforce focused agency to include the state workforce development board. Provides that certain workforce related programs include apprenticeship programs, unless the apprenticeship
(Continued next page)

Effective: July 1, 2026.

Behning, McGuire, Davis, Cash
(SENATE SPONSOR — RAATZ)

January 8, 2026, read first time and referred to Committee on Education.
January 27, 2026, amended, reported — Do Pass.
January 29, 2026, read second time, ordered engrossed.
January 30, 2026, engrossed.
February 2, 2026, read third time, passed. Yeas 70, nays 28.

SENATE ACTION

February 5, 2026, read first time and referred to Committee on Education and Career Development.
February 12, 2026, amended, reported favorably — Do Pass.

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program receives certain funding. Requires a regional representative appointed to the Ivy Tech Community College (college) state board of trustees (state board of trustees) to serve as a nonvoting member of the college campus board (campus board) for the region the member represents. Requires each college campus to review building utilization data prior to approving capital requests or requests for proposals. Requires the state board of trustees to create and approve evaluation tools for campus boards to provide annual feedback on the performance of the campus chancellors. Requires the college to annually provide: (1) certain program and student metrics information; and (2) an analysis of market labor outcomes; to each campus board. Requires each college campus to: (1) prepare a campus strategic plan that connects to the college's strategic plan; and (2) submit the campus strategic plan to the state board of trustees for approval. Provides that, when a vacancy occurs in the position of a campus chancellor, a member of the campus board selected by the campus board, shall serve on the search committee appointed by the president of the college.



February 13, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED HOUSE BILL No. 1408

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 4-3-26-10, AS AMENDED BY P.L.138-2025,
2 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 10. The MPH shall do the following:

4 (1) Establish and maintain a program to collect, analyze, and
5 exchange government information in carrying out the powers and
6 duties of the OMB and the powers and duties of the executive
7 state agency sharing the data. In carrying out this program, the
8 MPH may, in accordance with IC 4-1-6, obtain government
9 information from each executive state agency.

10 (2) In accordance with IC 4-1-6 and IC 5-14-3, establish and
11 maintain a program to make government information available to
12 executive state agencies, political subdivisions, educational
13 institutions, researchers, nongovernmental organizations, **the**
14 **general assembly and its members**, and the general public,
15 subject to the following:

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- 1 (A) A request for data subject to IC 4-1-6-8.6 shall be made in
- 2 conformance with that section.
- 3 (B) A program established and maintained under this chapter
- 4 must include policies governing access to government
- 5 information held by the MPH under this chapter. Government
- 6 information may be made available only in accordance with
- 7 applicable confidentiality and disclosure laws.
- 8 (3) Establish privacy and quality policies for government
- 9 information that comply with all applicable Indiana and federal
- 10 laws, rules, and policies.
- 11 (4) In accordance with standards developed by the office of
- 12 technology established by IC 4-13.1-2-1, establish and maintain
- 13 a program to ensure the security of government information under
- 14 this chapter.
- 15 (5) Conduct operational and procedural audits of executive state
- 16 agencies.
- 17 (6) Perform financial planning and design and implement
- 18 efficiency projects for executive state agencies.
- 19 (7) Advise and assist each executive state agency to identify and
- 20 implement continuous process improvement in state government.
- 21 (8) Carry out such other responsibilities as may be designated by
- 22 the director of the OMB or the chief data officer to carry out the
- 23 responsibilities of the OMB or the chief data officer.
- 24 SECTION 2. IC 4-3-26-17, AS ADDED BY P.L.106-2024,
- 25 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 26 JULY 1, 2026]: Sec. 17. (a) The MPH shall do the following before
- 27 September 1 each year:
- 28 (1) Compile into a data product:
- 29 (A) all reports delivered to the MPH under IC 22-4.1-24-3 for
- 30 the twelve (12) month period ending on the preceding March
- 31 31;
- 32 (B) the information contained in the dashboard described
- 33 in IC 20-31-8-5.5;
- 34 (C) the report described in IC 21-14-15-1; and
- 35 (D) the analysis described in IC 21-14-15-2.
- 36 (2) Make the data product available to:
- 37 (A) each workforce focused agency (as defined in
- 38 IC 22-4.1-1-6.5); and
- 39 (B) the general assembly.
- 40 (b) The MPH shall include the data product components
- 41 described in subsection (a)(1)(B) through (a)(1)(D) in the data
- 42 product described in subsection (a)(1) subject to available funding.



SECTION 3. IC 21-22-6-3, AS AMENDED BY P.L.174-2018, SECTION 20, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. The campus board consists of at least seven (7) members, including **the respective regional representative of the state board of trustees appointed under IC 21-22-3-3, who serves as a nonvoting member, and** at least five (5) members who are representative of the manufacturing, commercial, agricultural, labor, and educational groups of the campus service area, all appointed by the state board of trustees. Membership may include a representative from a school corporation that has part of its district within the campus service area and at least one (1) Ivy Tech Community College student who is enrolled at the campus. All members of the campus board must be residents of the campus service area. Appointments are for three (3) year terms, on a staggered basis, and all trustees must be citizens of Indiana. Members may serve for an unlimited number of terms.

SECTION 4. IC 21-22-6-8, AS AMENDED BY P.L.174-2018, SECTION 25, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. A campus board shall do the following:

- (1) Make a careful analysis of the educational needs and opportunities of the campus service area, including an analysis of programs and pathways designed to meet workforce and employer demand.
- (2) Develop and recommend to the state board of trustees a plan for providing postsecondary:
 - (A) general education;
 - (B) liberal arts education; and
 - (C) occupational and technical education;
 programs and appropriate workforce development, assessment, and training services for the residents of that campus service area.
- (3) Develop and recommend a budget for campus programs and operations.
- (4) Identify and recommend methods to optimize the use of facilities and equipment to support programs and pathways designed to meet workforce and employer demand.
- (5) Facilitate and develop cooperation with employers, community leaders, economic development efforts, area career and technical education centers, and other public and private education and training entities in order to provide postsecondary general, liberal arts, and occupational and technical education and training designed to meet workforce and employer demand in an efficient and cost effective manner and to avoid duplication of services.



(6) Determine through evaluation, studies, or assessments the degree to which the established training needs of the campus service area are being met.

(7) Make recommendations to the state board of trustees concerning policies that appear to substantially affect the campus board's capacity to deliver effective and efficient programming.

(8) Review building utilization data prior to approving capital requests or requests for proposals to ensure capital investments are justified by enrollment projections and operational efficiency data.

SECTION 5. IC 21-22-6-12 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 12. On or before July 1, 2027, the state board of trustees shall create and approve evaluation tools for campus boards to provide annual feedback on the performance of the campus chancellors to the president of Ivy Tech Community College.**

SECTION 6. IC 21-22-6-13 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 13. (a) On or before July 1, 2027, and each July 1 thereafter, Ivy Tech Community College shall provide to each campus board, in a manner and form prescribed by the state board of trustees, the information described in IC 21-14-15-1(1) through IC 21-14-15-1(13).**

(b) Each campus shall provide to its campus board, at each regularly scheduled meeting, a performance dashboard that includes:

- (1) the annual goals established by the campus strategic plan under section 15 of this chapter;**
- (2) progress toward each annual goal as of the date of the report;**
- (3) a comparison of current progress to outcomes achieved for the same period of the prior year; and**
- (4) an explanation of contributing factors and proposed corrective actions for any goals where progress is significantly below target.**

(c) The state board of trustees shall establish a standardized format for the performance dashboard described in subsection (b) to ensure consistency across campuses, while permitting the inclusion of campus specific metrics.

SECTION 7. IC 21-22-6-14 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY



1, 2026]: Sec. 14. On or before July 1, 2027, and each July 1 thereafter, Ivy Tech Community College shall provide to each campus board an annual analysis of market labor outcomes that does the following:

- (1) Analyzes regional employer demand by sector, occupation, and required skills.
- (2) Quantifies campus level credential supply relative to regional workforce demand.
- (3) Identifies misalignment between program offerings and high wage career opportunities.
- (4) Considers other relevant data, as determined by a campus.
- (5) Considers strategies to address gaps identified in subdivisions (1) through (4).

SECTION 8. IC 21-22-6-15 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 15. (a) Each campus shall prepare a campus strategic plan that connects with Ivy Tech Community College's strategic plan and includes the following:

- (1) The campus vision and mission.
- (2) Measurable goals, including:
 - (A) overall student enrollment;
 - (B) enrollment in programs aligned to high wage, high demand occupations within the campus service area as identified in the campus strategic plan;
 - (C) student persistence, meaning a student's continued enrollment and progress toward a degree or credential;
 - (D) completion of a high value credential or an associate degree, or transfer to a four (4) year institution;
 - (E) placement into:
 - (i) work based learning; or
 - (ii) apprenticeships;
 - (F) job placement and graduate wages, as measured by the regional good jobs definition approved by the campus board under clause (H);
 - (G) building utilization; and
 - (H) a regional good jobs definition approved by the campus board that includes consideration of:
 - (i) wages adjusted for regional cost of living;
 - (ii) access to employer provided benefits, including health insurance and retirement;
 - (iii) opportunities for career advancement; and
 - (iv) positions providing significant public benefit,



including early childhood education, health care, and public safety.

(3) Specific strategies to achieve the goals identified in subdivision (2), including:

(A) a general description of the actions the campus will take to achieve each measurable goal;

(B) a target date for implementation; and

(C) a list of identified resources required for execution.

(4) A process for annual review and adjustment of the strategic plan based on performance data and changing regional conditions.

(b) The campus shall submit the strategic plan described in subsection (a) to the campus board and state board of trustees for approval.

(c) After a strategic plan has been approved under subsection (b), the campus shall provide the campus board with a campus budget summary and budget narrative that:

(1) demonstrates alignment between resource allocation and the priorities, goals, and strategies identified in the strategic plan;

(2) identifies categories of major expenditures;

(3) explains significant changes from the prior budget year; and

(4) describes how budget decisions support the achievement of measurable goals.

SECTION 9. IC 21-22-6-16 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 16. When a vacancy occurs in the position of a campus chancellor, a member of the campus board selected by the campus board, shall serve on the search committee appointed by the president of Ivy Tech Community College.**

SECTION 10. IC 22-4.1-1-6.5, AS AMENDED BY P.L.213-2025, SECTION 275, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 6.5. "Workforce focused agency" means the following:**

(1) The department.

(2) The department of education established by IC 20-19-3-1.

(3) The commission for higher education established by IC 21-18-2-1.

(4) The office of the secretary of family and social services established by IC 12-8-1.5-1.

(5) The state workforce development board.



SECTION 11. IC 22-4.1-1-7, AS AMENDED BY P.L.7-2025,
SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
JULY 1, 2026]: Sec. 7. (a) Except as provided in subsection (b),
"workforce related program" means:

(1) a program operated, delivered, or enabled, in whole or in part,
by a state provider using public funds to offer incentives, funding,
support, or guidance for any of the following purposes:

(A) Job training.

(B) The attainment of an industry recognized certification or
credential.

(C) The attainment of a postsecondary degree, certificate, or
credential.

(D) The provision of other types of employment assistance.

(E) The promotion of Indiana to workers or the provision of
assistance to a worker relocating to Indiana for employment.

(F) Any other program that:

(i) has, at least in part, the goal of securing employment or
better employment for an individual; and

(ii) receives funding through WIOA or a state appropriation;
or

(2) a work based learning program or transitional jobs program
that is:

(A) through an employment social enterprise; and

(B) operated, delivered, or enabled, in whole or in part, by a
state provider using public funds.

(b) For purposes of IC 22-4.1-24-3, "workforce related program"
means a program offering incentives, funding, support, or guidance for
any of the following purposes:

(1) Job training.

(2) The attainment of an industry recognized certification or
credential.

(3) The attainment of a postsecondary degree, certificate, or
credential.

(4) The provision of other types of employment assistance.

(5) The promotion of Indiana to workers or the provision of
assistance to a worker relocating to Indiana for employment.

(6) Any other program that has, at least in part, the goal of
securing employment or better employment for an individual.

The term ~~does not include~~ **includes** an apprenticeship program for
which funding is received ~~unless the apprenticeship program~~
receives funding under IC 22-4-25-1(c).

SECTION 12. IC 22-4.1-24-3, AS ADDED BY P.L.106-2024,



1 SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
2 JULY 1, 2026]: Sec. 3. (a) As used in this section, "management
3 performance hub" refers to the management performance hub
4 established by IC 4-3-26-8.

5 (b) Not later than July 1, 2025, and before July 1 of each year
6 thereafter, each workforce focused agency shall deliver to the
7 management performance hub a workforce related program report,
8 **including any related or supporting data contemplated by the**
9 **report or data elements developed by a data governance team**
10 **under subsection (c)(2).**

11 (c) Before June 30, 2025, each workforce focused agency shall do
12 the following:

13 (1) Establish a workforce related program data governance team
14 of subject matter experts.

15 (2) Develop a common set of data elements to be used to evaluate
16 the workforce related program.

17 (3) To the extent reasonably possible, include in a contract
18 entered into or renewed after June 30, 2024, between a workforce
19 focused agency and a person conducting, operating, or
20 administering a workforce related program a provision that
21 requires the person to provide the workforce focused agency with
22 the common set of data elements developed under subdivision (2).



COMMITTEE REPORT

Mr. Speaker: Your Committee on Education, to which was referred House Bill 1408, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 3, delete lines 1 through 3.

Page 3, line 8, after "IC 21-22-3-3," insert **"who serves as a nonvoting member,"**.

Page 4, line 16, delete "(a) The" and insert **"On or before July 1, 2027, the"**.

Page 4, line 16, after "shall" insert **"create and"**.

Page 4, line 17, delete "board executive committees to conduct" and insert **"boards to provide annual feedback on the performance of the campus chancellors to the president of Ivy Tech Community College."**

Page 4, delete lines 18 through 23.

Page 4, line 26, after "Sec. 13." insert **"(a)"**.

Page 4, line 27, delete "each campus shall report to its" and insert **"Ivy Tech Community College shall provide to each"**.

Page 4, between lines 30 and 31, begin a new paragraph and insert:
"(b) Each campus shall provide to its campus board, at each regularly scheduled meeting, a performance dashboard that includes:

(1) the annual goals established by the campus strategic plan under section 15 of this chapter;

(2) progress toward each annual goal as of the date of the report;

(3) a comparison of current progress to outcomes achieved for the same period of the prior year; and

(4) an explanation of contributing factors and proposed corrective actions for any goals where progress is significantly below target.

(c) The state board of trustees shall establish a standardized format for the performance dashboard described in subsection (b) to ensure consistency across campuses, while permitting the inclusion of campus specific metrics."

Page 4, line 34, delete "each campus shall conduct" and insert **"Ivy Tech Community College shall provide to each campus board"**.

Page 5, line 6, after "that" insert **"connects with Ivy Tech Community College's strategic plan and"**.

Page 5, line 11, delete "region" and insert **"campus service area"**.



Page 5, line 15, delete ", as determined by".

Page 5, line 16, delete "the campus board," and insert "**or**".

Page 5, delete lines 18 through 25, begin a new line double blocked indented and insert:

"(E) placement into:

(i) work based learning; or

(ii) apprenticeships;

(F) job placement and graduate wages, as measured by the regional good jobs definition approved by the campus board under clause (H); "

Page 5, line 26, delete "." and insert "; and

(H) a regional good jobs definition approved by the campus board that includes consideration of:

(i) wages adjusted for regional cost of living;

(ii) access to employer provided benefits, including health insurance and retirement;

(iii) opportunities for career advancement; and

(iv) positions providing significant public benefit, including early childhood education, health care, and public safety."

Page 5, line 28, delete "." and insert ", including:

(A) a general description of the actions the campus will take to achieve each measurable goal;

(B) a target date for implementation; and

(C) a list of identified resources required for execution.

(4) A process for annual review and adjustment of the strategic plan based on performance data and changing regional conditions."

Page 5, delete lines 29 through 31.

Page 5, between lines 34 and 35, begin a new paragraph and insert:

"(c) After a strategic plan has been approved under subsection (b), the campus shall provide the campus board with a campus budget summary and budget narrative that:

(1) demonstrates alignment between resource allocation and the priorities, goals, and strategies identified in the strategic plan;

(2) identifies categories of major expenditures;

(3) explains significant changes from the prior budget year; and

(4) describes how budget decisions support the achievement of measurable goals."

Page 5, delete lines 35 through 42.



Page 6, delete lines 1 through 34, begin a new paragraph and insert:
 "SECTION 9. IC 21-22-6-16 IS ADDED TO THE INDIANA CODE
 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
 1, 2026]: **Sec. 16. When a vacancy occurs in the position of a
 campus chancellor, a member of the campus board selected by the
 campus board, shall serve on the search committee appointed by
 the president of Ivy Tech Community College."**

Page 8, line 28, delete "section:" and insert "**section, "government
 information" means information described in IC 4-3-26-7."**

Page 8, delete lines 29 through 32.

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to HB 1408 as introduced.)

BEHNING

Committee Vote: yeas 7, nays 3.

COMMITTEE REPORT

Mr. President: The Senate Committee on Education and Career
 Development, to which was referred House Bill No. 1408, has had the
 same under consideration and begs leave to report the same back to the
 Senate with the recommendation that said bill be AMENDED as
 follows:

Page 2, line 40, after "(b)" insert "**The**".

Page 8, delete lines 23 through 36.

and when so amended that said bill do pass.

(Reference is to HB 1408 as printed January 27, 2026.)

RAATZ, Chairperson

Committee Vote: Yeas 12, Nays 0.

EH 1408—LS 7105/DI 143

